

		there is no Contract between Plaintiffs and Defendant Robert C. Mullins. The Complaint also lacks any allegations establishing fact sufficient to support and alter ego theory of liability. Importantly, Plaintiff's third cause of action for breach of fiduciary duties, fourth cause of action for breach of implied covenant of good faith and fair dealing, and sixth cause of action for violation of Business & Professions Code section 17200 et seq. all reply on a presupposed a relationship between Plaintiff and Defendant Robert Mullins based on the contract at issue in the Complaint. As discussed, however, no such relationship has been alleged between Plaintiffs and Defendant Robert Mullins. The Complaint also lacks allegations regarding any wrongful misrepresentations or acts causing negligent infliction of emotional distress that were committed by Defendant Robert Mullins in his individual capacity. For the reasons discussed above, Defendant Robert C. Mullins's Demurrer is SUSTAINED in its entirety WITH 20 DAYS' LEAVE TO AMEND. In making this ruling, the Court is mindful that it reached the opposite conclusion in May 2025 as to Defendant Hai Minh Le. Plaintiff may choose to stipulate with Defendant Hai Minh Le as to the following: Plaintiff may amend the complaint as to Hai Minh Le as well, and the answer by Hai Minh Le is stricken and Hai Minh Le may file a new responsive pleading after the amended complaint is filed and served. Alternatively, Defendant Hai Minh Le may file a motion for judgment on the pleadings. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Moving defendant to give notice.</i>
107	Alvidrez vs. Covetrus Software Services, LLC, 25-01459002	Plaintiff Michael Alvidrez ("Plaintiff") moves for leave to amend his Complaint pursuant to Labor Code section 2699.3 and Code of Civil Procedure section 473 to add a PAGA cause of action. Defendant Covetrus Software Services, LLC ("Defendant") opposes the motion.

	"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473(a)(1).) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530.) The proposed FAC is attached to Plaintiff's supporting declaration. That declaration also explains the effect of the proposed amendment, when the facts giving rise to the amendment became known, and why Plaintiff did not seek leave earlier. Defendant argues the motion should be denied because Plaintiff has offered no explanation for the failure to seek leave to amend earlier, Plaintiff's pattern of conduct shows bad faith and dilatory motive, and Defendant would be prejudiced if amendment is allowed by having to litigate a new and distinct theory. Plaintiff's counsel has explained that he was under the impression that leave was not required so long as he filed an amended complaint within 60 days of the PAGA notice maturing, which is a reasonable reading of Labor Code section 2699.3(a)(2)(C). Thus, Plaintiff attempted to file an amended complaint in May, shortly after his PAGA notice matured. After those attempted filings were rejected, Plaintiff requested that Defendant stipulate to the amendment. When defense counsel indicated that they would not stipulate on July 22, 2025, Plaintiff filed his first motion for leave to amend on August 11, 2025, which was denied for purely procedural deficiencies. The Court finds no evidence of dilatory motive or delay in this procedural history. Further, Defendant has presented no evidence in support of its claim of prejudice, such as facts regarding the discovery performed thus far. Thus, the Court finds Defendant's arguments unpersuasive.
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		In light of the above, the motion for leave to amend is GRANTED. Plaintiff to file and serve his amended complaint within 10 days of the date of this order. The Court sets an Order to Show Cause why the case should not be transferred to Complex for August 13, 2026 at 1:30 p.m. In light of the new PAGA claim, the parties may stipulate to the transfer and the Court upon reviewing the stipulation and entering an order will vacate the August 13, 2026 hearing. <i>Plaintiff to give notice.</i>
108	Armstrong vs. DH Dental Employment Services, LLC, 25-01508012	Defendants DH Dental Employment Services, LLC, Kerr Corporation, and Envista Holdings Corporation (collectively, "Defendants"), move this Court for an order (i) compelling arbitration of Plaintiff David Armstrong's ("Plaintiff") claims against Defendants, and (ii) dismissing, or in the alternative staying, further proceedings in this Court pending resolution of this motion and completion of arbitration. Plaintiff started as a Business Analyst in 2010 for Defendants. (Complaint¶9.) Defendant employer asserts that it rolled out a Dispute Resolution Agreement ("DRA") in "on or around September of 2022 using the Workday system". (Decl. of Herold¶4.) The DRA allegedly presented to Mr. Armstrong on the Workday system is attached to the Declaration of Herold at Ex. C. Relevant portions of that Agreement provide: "1. The validity, construction, interpretation, and enforcement of this Agreement shall be governed by the substantive and procedural rules of the Federal Arbitration Act ("FAA"), as the Company operates in interstate commerce. Only a court of competent jurisdiction, and not the arbitrator, shall have the authority to resolve gateway questions of arbitrability as well as the validity of the class, collective, and representative action waiver as set forth in Paragraph 7 of this Agreement. "2. Employee and Company agree to submit all "Claims" (defined in Paragraph 6 below)